VANESSA W. MOTT (SBN 184606)
vmott@martensonlaw.com
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Boulevard, Suite 1250
Costa Mesa, CA 92626
Telephone: (279) 895-6501

Attorney for Defendant United Parcel Service, Inc.

UNITED STATES DISTRICT COURT

EASTERN DISTRICT OF CALIFORNIA

BRENDAN NGWANFORBI,
Plaintiff,

v.

UNITED PARCEL SERVICE, INC.; and DOES 1 through 10, inclusive,
Defendants.

Case No.: 2:26-cv-02847-DAD-CKD

DEFENDANT UNITED PARCEL SERVICE, INC.'S REPLY IN SUPPORT OF ITS 12(b)(6) MOTION TO DISMISS

Date: October 07, 2026
Time: 10:00 AM
Courtroom: 24

Action Filed: July 15, 2026
Removal Filed: August 20, 2026

TO THE HONORABLE COURT AND THE PLAINTIFF.

Defendant United Parcel Service, Inc. ("UPS") files this Reply in Support of its Motion to Dismiss for a failure to state a claim pursuant to Federal Rule of Civil Procedure 12(b)(6) ("Rule 12(b)(6)").

I. INTRODUCTION

On July 15, 2026, Plaintiff, proceeding *pro se*, filed the present action against UPS in the Superior Court for San Joaquin County. [ECF No. 1, Exhibit A].On August 20, 2026, UPS filed a Notice of Removal, bringing Plaintiff's claims under the purview of this Court based on diversity jurisdiction. [ECF No. 1].

Shortly after removing the matter to this Court, on August 26, 2026, UPS filed a Motion to Dismiss for failure to state a claim. [ECF No. 7]. Two days later, Plaintiff filed his opposition. [ECF No. 10].

II. LEGAL ARGUMENT AND CITATION TO AUTHORITY

Plaintiff's opposition is grounded in what he believes to be one infallible principle—that UPS accessed California's Megan's Law website and impermissibly used the information derived therefrom in its decision to not hire Plaintiff. That argument fails.

A. UPS Did Not Access California's Megan's Law Website.

To support his position, Plaintiff directs the Court's attention to Exhibit A, which UPS attached to its initial motion. In Plaintiff's view, the Exhibit contradicts UPS's statement in its Motion that "[t]here is not a single reference to any California based sex offender registry included in the background check UPS obtained." It does not, but perhaps the initial Motion could have been more clear. The background check explicitly states that it *searched* the National Sex Offender Registry. *See* [ECF No. 7, Exhibit A, pg. 6]. The background check further states that the search yielded a 'Record Found' designation. *Id*. The record was found on the *National* Sex Offender Registry. The National Sex Offender Registry Search further yielded a result indicating that Plaintiff was also included on the California Sex Offender Registry. *Id*. The background check does not state, however, that the

California registry was ever searched. What Plaintiff appears to be referencing in his Brief is the notation on the background check that he appears on the California registry.

Two things can be true at the same time—that UPS searched the National Sex Offender Registry and that Plaintiff is included on the California registry. The evidence shows that UPS did not access the California registry, but rather that it searched the National registry which included a notation that Plaintiff is also on the California registry.

Plaintiff's argument that UPS impermissibly accessed information on the Megan's Law website is two steps removed from what the background check actually states. The National Sex Offender Registry was searched, and when it was, it returned a hit noting that Plaintiff was included on California's sex offender registry. At no point did UPS *access* the Megan's Law website, or use information derived from it, when making its decision to not hire Plaintiff. Rather, when UPS learned that Plaintiff was included on the National Sex Offender Registry, it used that information when making its employment decisions related to Plaintiff.

B. Plaintiff's Arguments Regarding Section 432.7 Do Not Preclude Dismissal.

In an attempt to avoid dismissal, Plaintiff argues that the Court would be required to draw an impermissible inference against him if it were to reasonably conclude that when he alleged UPS wrongfully accessed his sex offender status to deny him employment that he also impliedly confirmed that he has been convicted of a sex crime. To the contrary. As the Court knows, "[i]n determining whether a complaint states a claim on which relief may be granted, the court accepts as true the allegations in the complaint and construes the allegations in the light most favorable to the plaintiff." *Crownholm v. Moore*, 652 F. Supp. 3d 1155, 1163 (E.D. Cal. 2023). If Plaintiff alleges he is included on the California Sex Offender's Registry, then the Court must accept that allegation as true. His claim is derivative of his inclusion on the Registry. Accordingly, Cal Labor Code 432.7's prohibition of an employer inquiring with an applicant about "information concerning an arrest or detention that did not result in conviction" does not apply because Plaintiff admits what UPS is premising its motion on – *he is on the* National Sex Offender Registry. Cal Labor Code § 432.7(1)(1).

As Plaintiff points out, 432.9(n) does include language stating that an employer is not prohibited "from seeking or receiving an applicant's criminal history report that has been obtained pursuant to procedures otherwise provided for under federal, state, or local law." *Id*. Plaintiff incorrectly states, however, that the subdivision addresses only *seeking and receiving reports*, not using them. [Dkt. 10, 10:4–5]. But as UPS stated in its initial motion, the subdivision further authorizes an employer to "conduct criminal background checks for employment purposes *or to restrict employment based on criminal history*." *Id*. UPS's assertion that 432.7(n) is a safe harbor is rooted in the statute's own language.

Even if this Court disagrees with UPS's interpretation of the subdivision, Plaintiff's claims still fail. Specifically, subdivision (n) provides another carve out for reports "obtained pursuant to procedures otherwise provided for under federal, state, or local law." *Id*. Because UPS complied with each of the requirements under Cal. Gov't Code § 12952, the "obtained pursuant to procedures otherwise provided for under federal, state, or local law" applies and precludes any liability under this Section.

Because UPS only accessed the National Sex Offender Registry when conducting its background check on Plaintiff, it cannot be found to have violated Cal. Penal Code § 290.46(j)(2)(E), and Plaintiff's claim must be dismissed.

C. Plaintiff Admits UPS Complied with the Investigative Consumer Reporting Agencies Act.

Plaintiff explicitly provided his consent for UPS to obtain his consumer report. Plaintiff disagrees. In support of his argument, Plaintiff directs the Court to Exhibit B of UPS's initial Motion. Specifically, to Page 27 of the Motion. On page 27, after all of the state-specific disclosure language, Plaintiff confirmed his consent by clicking the box that states "I agree that my electronic signature is the legally binding equivalent to my handwritten signature. By my electronic signature, I acknowledge that i have carefully reviewed this agreement and understand its contents." [ECF No. 7, pg. 27]. This is evidenced by the fact that there is a designation after that statement noting "I agree[.]" *Id*.

Plaintiff further admits that he received the required notices, but that "the First Advantage portal link expired and Plaintiff no longer has access to the underlying report." [ECF No. 10, 13:23–24]. The fact that Plaintiff failed to access or save the required notices does not preclude dismissal when he readily admits that he received them. In fact, Plaintiff's Complaint explicitly states that, "[t]he pre-adverse action notice sent to Plaintiff on July 22, 2024 constitutes the pre-adverse action notification required under the federal Fair Credit Reporting Act, 15 U.S.C. section 1681b(b)(3)(A), and the California investigative Consumer Reporting Agencies Act, Civil Code section 1786.40, before an employer takes adverse action based in whole or in part on a background screening report." [ECF No. 1, Exhibit A – Pltf's Compl., ¶18].

The underlying basis for Plaintiff ICRAA claim is the same allegation that was repeated throughout his Complaint—that UPS impermissibly used information it accessed on California's Megan's Law website in making the decision on whether or not to hire Plaintiff in violation of Cal. Penal Code § 290.46(j)(2)(E). As shown in Exhibit A, UPS did not access California's Megan's Law website, meaning UPS could not have impermissibly used the information found on that website. Because UPS did not violate Cal. Penal Code § 290.46(j)(2)(E) and otherwise complied with the ICRAA, Plaintiff ICRAA claim should be dismissed.

III. CONCLUSION

The Court should grant UPS's Motion to Dismiss because Plaintiff has failed to state a claim for which relief could possibly be granted. Each of the claims asserted in Plaintiff's Complaint stems from the allegation that UPS impermissibly used information it scraped from California's Megan's Law website in violation of Cal. Penal Code § 290.46(j)(2)(E). As evidenced above, that is not the case. UPS took information it found on the National Sex Offender Registry and used that information as part of its decision to not hire Plaintiff. Plaintiff cannot work his way around this fatal shortcoming and, even with leave to amend, his Complaint he would not be able to cure that deficiency. Of course, [d]ismissal can be based on the lack of a cognizable legal theory or the absence of sufficient facts alleged under a cognizable legal theory." *Crownholm*, 652 F.Supp.3d 1163. Because Plaintiff's does

not assert a cognizable legal theory for any of his asserted causes of action, this Court should grant UPS's Motion to Dismiss with prejudice.

DATE: September 14, 2026

MARTENSON, HASBROUCK & SIMON LLP

By: */s/ Vanessa W. Mott*
VANESSA W. MOTT
Attorney for Defendant
United Parcel Service, Inc.

VANESSA W. MOTT (SBN 184606)
vmott@martensonlaw.com
MARTENSON, HASBROUCK & SIMON LLP
600 Anton Boulevard, Suite 1250
Costa Mesa, CA 92626
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CERIFICATE OF SERVICE

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I am a citizen of the United States, more than eighteen years old, and not a party to this action. I am employed by the law firm Martenson, Hasbrouck & Simon LLP, and my business address is 600 Anton Boulevard, Suite 1250, Costa Mesa, California 92626

On **September 14, 2026**, I served true copies of the following document(s):

1. **DEFENDANT UNITED PARCEL SERVICE INC.'S REPLY IN SUPPORT OF ITS 12(b)(6) MOTION TO DISMISS**

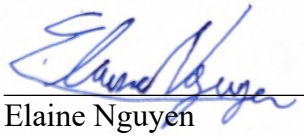
in the following manner(s):

X	**(By Mail)**	By placing said document(s) in a sealed envelope with postage thereon fully prepaid, for collection and mailing following our ordinary business practices. I am readily familiar with Martenson, Hasbrouck & Simon LLP's practice for collecting and processing correspondence for mailing. On the same day that correspondence is placed for collection and mailing, it is deposited in the ordinary course of business with the United States Postal Service.
	(By Hand Delivery)	By causing such document(s) to be delivered by hand to the addresses shown below via messenger.
	(By Overnight Delivery)	By placing said document(s) in a sealed envelope, postage prepaid, and depositing said envelope for delivery to a facility regularly maintained by United Parcel Service for overnight delivery.
	(By Email or E-Service)	By causing such document(s) to be emailed or electronically transmitted to the email addresses listed below, pursuant to a court order, an agreement of the parties, or other permissible reason.

On the following interested part(ies) in this action:

Brendan Ngehsi Newanforbi 1455 Cat Tail Drive Stockton, CA 95204 Telephone: (209) 801-4442 bnn.cdla@gmail.com	

I declare under penalty of perjury under the laws of the State of California that the above is true and correct. Executed on **September 14, 2026**.



Elaine Nguyen